OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Letter urges Shoalhaven Council to scrap its Land Use Planning Advisory Committee

Sent 14 August 2026 · To Cr Wilkins, Cr Casmiri, Shoalhaven City Council · Response requested by 21 August 2026

An Open Letter to Deputy Mayor Peter Wilkins and Chief Executive Officer Andrew Constance
The Land Use Planning & Development Advisory Committee should be dissolved.
Sent 14 August 2026 and published in full at steveprothero.substack.com. Copied to all councillors and to the Public Officer.

Dear Deputy Mayor Wilkins (as acting Mayor) and Mr Constance,

I am writing to ask that Council dissolve the Land Use Planning & Development Advisory Committee and return its functions to the Ordinary meeting.

Let me say at the outset what this letter is not.

It is not a criticism of the officers who service the committee. The reports are competently written and, in one instance I will come to, unusually candid about an unwelcome fact.
It is not an allegation of impropriety against any councillor. Nobody has done anything wrong. This is an argument about structure, not conduct.
It is not an argument that the subject matter is unimportant. Land use planning is close to the most consequential thing this Council does, and the Shoalhaven is carrying a State housing target, a floodplain problem and a twenty-year growth forecast at the same time.

And it is not an argument that the committee has never been useful. On 9 June it did something genuinely valuable. I want to set that out first, because it is the strongest thing that can be said for the committee — and because, on examination, it is also the clearest evidence for dissolving it.

The best thing the committee did this year
On 9 June, following a presentation on Berry's future, the committee resolved to ask the Director – City Development for a report to the September or October Ordinary meeting on expediting Berry's planning, so that future township growth can be built into the sewage treatment plant upgrade currently being designed.

That is a good resolution. Named officer, stated purpose, a deadline. Concrete gets poured once, and a plant sized for today's Berry will constrain that town for thirty or forty years. If that report lands and changes the design brief, the committee will have saved ratepayers real money and I will say so as plainly as I am saying this.

But look at what the resolution is.

The committee could not commission the work.
It could not direct the design.
All it could do with a good question was ask the Ordinary meeting to answer it.

Any councillor could have done that on any Tuesday of the year, by notice of motion, without a separate meeting, a separate agenda, a separate set of minutes or a separate report cycle.

That is the whole argument in one item.

The evidence
One — it is asked to decide almost nothing.

The meeting of 9 June ran 44 minutes and carried four substantive items. Three of them — the update on the new land use planning scheme, the Statewide Community Participation Plan submission, and the minutes of the Shoalhaven Development Industry Reference Group — were received, noted, or receipt acknowledged. Every one of the three staff-authored reports arrived with a recommendation that required members to decide nothing at all.

The single decision of the night came from the floor, off the back of an external consultant's presentation, not from the papers.

A body that receives information and takes no decisions is a briefing.
Council already holds briefings and workshops for that purpose, and they cost less to run.

Two — its own members have twice asked what it is for, and have not been answered.

On 28 April 2026, with the committee's report before Council for adoption, Cr Gillian Boyd said: "Before I move that, and I don't wish to move it, I would like to question why we have this committee."

Mayor White's answer was that the chamber was not the place to raise it: "I'm not sure whether we can question whether we have this committee. I don't think this is the right arena."

On 29 July 2026 Cr Boyd asked again, about a matter being referred to the committee: "I'm wondering why this is being referred to a committee that includes all of us here. Because we're all here and able to put a contribution in now if we need to... It seems a bit repeating."

I record for balance that the committee has a defender. At the same meeting Cr Luciano Casmiri argued for using it, saying the committee "was established exactly for that purpose." That is a legitimate position, honestly held, and he was arguing for more scrutiny of a technical document rather than less.

But it does not meet Cr Boyd's point. If the committee's membership is the councillors, referring a matter to it adds no expertise, no independent member, no community representative and no new information. It adds a date.

Three — its most consequential use this year has been as a place to send things.

On 29 July 2026 Council had two floodplain risk management studies and plans before it — St Georges Basin (CL26.162) and the Lower Shoalhaven River (CL26.163). Officers recommended adoption of both. Cr Casmiri and Cr Steele altered both recommendations so the plans go to this committee first. CL26.162 carried six votes to five; CL26.163 carried eight to three.

There is nothing improper in deferring a decision. Councils do it constantly and it is often right. The question is why a standing committee is the vehicle, when every councillor entitled to examine those plans in committee was already in the chamber, holding them, on the night — and when deferral to the next Ordinary meeting, or a workshop, would achieve the same examination without a second meeting.

Four — it is not doing the job its terms of reference give it.

The terms of reference require the committee to advise Council on priorities between projects, on the need for additional projects, and on resourcing for development application processing.

On 9 June no DA data of any kind was presented — no determination times, no backlog, no staffing numbers — even though the committee's own papers name the Minister's Statement of Expectations and the monitoring of Council's DA performance as an external driver of the work program.

There was no progress reporting against the State's target of 4,900 additional homes in the Shoalhaven by 30 June 2029. Two years into a five-year target, the papers cite the number as context and never return to it. The papers also forecast demand for at least 14,000 new dwellings over twenty years.

No prioritisation question was put, despite at least seven concurrent workstreams competing for one directorate's budget.

And the papers disclosed — to Council's credit — that its $250,000 application to Round 4 of the Regional Housing Strategic Planning Fund was unsuccessful. There is no record of a single question about it. Not which studies are now unfunded, not which milestones move, not whether Round 5 will be pursued. The report says the work will be "managed within Strategic Planning's budget for 2026/2027," with no dollar figure, no list and no costing.

Five — nothing it resolves is tracked.

In April the committee recommended Council endorse the Nowra Precinct Renewal Strategy as an advocacy focus and present it to the three local MPs. By June it had gone from the papers entirely. No report on whether Council adopted it. No word on whether any MP has been briefed.

Across the April and June meetings, six substantive items produced two directive outcomes and no report closing out a previous committee resolution. There is no action register in the agenda.

There is also this. On 9 June the committee acknowledged Council's staff submission on the NSW Statewide Community Participation Plan — a submission made in Council's name, warning that the draft state plan "shifts too much engagement away from development assessment, which could leave communities feeling excluded and reduce trust in the planning system." Submissions closed on 3 June. The report records "no responses received" from councillors, who had been given the draft in advance.

A committee of elected members contributed nothing to a submission about community participation, and then noted it six days after the door had shut.

What I am asking of Cr Wilkins
Deputy Mayor, I am asking you to give notice of a motion in substantially these terms:

That Council:

1. Dissolve the Land Use Planning & Development Advisory Committee.

1. Return the functions set out in its terms of reference to the Ordinary meeting of Council, and where a matter requires detailed examination before decision, deal with it by councillor briefing or workshop.

1. Refer every matter presently standing referred to the committee — including the St Georges Basin and Lower Shoalhaven River floodplain risk management studies and plans under CL26.162 and CL26.163 — directly to the next available Ordinary meeting, so that no matter is delayed by the dissolution.

1. Adopt, for every remaining committee and advisory body of Council, a standing action register as a fixed agenda item, recording for each resolution the responsible officer, the due date, the current status and the evidence of completion.

1. Receive a report twelve months from adoption on the operation of paragraph 4.

I am asking you rather than another councillor for two reasons, and I will state both rather than leave them to be inferred. You are Deputy Mayor, and a motion of this kind carries differently coming from the majority than from the minority. And you have shown you will move a procedural change on the floor when you think the substance warrants it.

If you think the motion is wrong, say so and say why. A public answer from the Deputy Mayor explaining what this committee is for would itself be worth more than the committee has produced this year, and I will publish it in full.

What I am asking of Mr Constance
Chief Executive, a motion of this kind should not be moved on my analysis. It should be moved on Council's own data. I am asking for seven things, none of which should require new work:

1. The current terms of reference in full, including the membership clause. Specifically: is every councillor a member of this committee? Cr Boyd has twice described it that way from the floor and has not been corrected, but I would rather cite the instrument than the transcript.

1. Confirmation of whether the Land Use Planning & Development Advisory Committee is among the thirteen committees continued by CL24.289 on 28 October 2024, and when the 2024–2028 committee structure is next scheduled for review.

1. For every meeting of the committee since the 2024 election: the date, the number of items listed, and how many of those items carried a recommendation requiring a decision as distinct from receipt or noting.

1. The officer cost of servicing the committee for 2025/26 — report preparation, agenda production, attendance, minutes — on whatever basis Council ordinarily costs such things. I have used an estimate of $3,900 per meeting in my own writing, built on standard local-government loaded-cost assumptions and not on Shoalhaven salary data. I would rather use your figure and I will publish it in place of mine.

1. A list of every resolution of the committee in the last twelve months, with its current status, and confirmation of whether any action register is maintained. If one exists, I will correct the record.

1. What became of the April 2026 resolution on the Nowra Precinct Renewal Strategy: whether Council adopted it, and whether any of the three local members has been briefed.

1. Which planning studies are now unfunded following the unsuccessful $250,000 Round 4 application, what they were costed at, and whether Round 5 is being pursued.

If the answers to 3, 4 and 5 show a committee that is deciding things, generating advice that changed outcomes, and closing out its own resolutions, then I am wrong and this letter is wrong, and I will publish that finding under my own name with the same prominence.

Timing
The next Ordinary meeting is Tuesday 25 August 2026. I am asking for a response by 5.00pm on Friday 21 August 2026.

I recognise that is a short window. If any part cannot be answered in the time, please say so and answer the rest — I would rather publish a partial answer promptly than hold a complete one.

I will publish your answers in full and unedited, at whatever length you give them. If any fact in this letter is wrong, I will correct it at the top of the article, in your wording, with my name attached to the error. The standing offer also remains open to both of you: forty-five minutes, on the record, at a time that suits.

I have no interest in the committee's abolition for its own sake. I have an interest in eleven elected members not spending 44 minutes being told things while a sewage plant is sized without them.

Yours sincerely,

Steve Prothero

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No adverse finding has been made against any councillor or officer named in this letter, and none is implied. Cr Casmiri's position in support of the committee is set out above in his own words.
